

Regulatory Affairs & Compliance
Northgate Pharmaceutical Distributors, Inc.
77 Commerce Blvd
Columbus, OH 43215

March 4, 2026

Attn: Director of Quality Assurance
Apex BioPharma Manufacturing Ltd.
215 Innovation Way
Raleigh, NC 27607

Subject: Formal Complaint - Label Discrepancy on Metformin HCl Extended-Release Tablets, Batch #APX-3390

Dear Director,

This letter serves as formal notification of a labeling discrepancy identified during routine incoming inspection of Metformin HCl Extended-Release Tablets 750mg, Batch #APX-3390, received at our Columbus distribution facility on February 27, 2026, under Purchase Order #NG-55210.

During inspection, our quality team identified that 4 cartons (Carton IDs APX-3390-C118 through C121) were labeled with an incorrect expiration date of 05/2026 printed on the carton, while the individual blister strips inside correctly reflect an expiration date of 05/2028. This discrepancy between outer carton labeling and primary packaging labeling raises concerns regarding the labeling control process for this batch.

We have placed the affected cartons on quality hold and have not released them for further distribution. We request written confirmation of the correct expiration date for Batch #APX-3390, an explanation of the root cause of this labeling error, and confirmation of whether other cartons within this batch or related batches may be similarly affected.

Per our supplier quality agreement, we ask that Apex BioPharma Manufacturing Ltd. provide a formal CAPA (Corrective and Preventive Action) summary addressing this discrepancy within 15 business days. Please also advise on the disposition of the affected cartons (return, relabel, or destroy).

Sincerely,

Michael Torres

Director of Quality Assurance, Northgate Pharmaceutical Distributors, Inc.

Enclosures:

- Photographs of carton labels vs. blister strip labels
- Batch receiving inspection report #RN-6602